

ANI



"THERE IS A NEED TO FAST-TRACK STRATEGIC AND SECURITY-RELATED PROJECTS OF NATIONAL IMPORTANCE"

BHUPENDER YADAV,
Union envirvonment minister

forest clearance still takes several years. "At present, over 60 BRO projects along the northern borders are awaiting Stage I and Stage II forest clearances from the state and Union governments," she says.

COMPENSATION CONCERNS

Though developmental projects in ecologically sensitive areas have to tread a fine line, local inhabitants of border areas have by and large welcomed border infrastructure being beefed up as it gives them better connectivity. "Though there are instances of opposition to hydropower projects or maybe on the army's field firing ranges, border infrastructure per se has never faced much opposition from locals," says Das. For the Nelong-Sonam motorable road in Uttarkashi district of Uttarakhand, some environmentalists raised concerns about possible damage to the flora and fauna of the region. Eventually, the BRO managed to convince them that the work being done followed the best practices. "Normally, locals do not resist border infrastructure. But in some places like Arunachal Pradesh, we have seen litigation against the government's compensation rates," says a BRO official, who added that the Supreme Court has made it clear that the compensation should be at market rates, not circle rates (government rate). For acquiring forest land, BRO also pays monetary compensation to the forest department for afforestation (one needs to plant two trees if one tree is being cut for constructing/ expanding roads).

Lt General D.S. Hooda, former commander of the army's northern command, says environmental clearances have always been a bottleneck for military infrastructure in border areas. "Since much of our border areas have thick forests, mountain ranges and rivers, we have to get green clearances. Compared to China, which has built black-top roads right up to the border, we are lagging way behind. There has been a major infrastructural push on the LAC in the past five to six years, and I think this bill will make things smoother for the army," says Lt Gen. Hooda.

For instance, according to top military officials, 34 border outposts in Ladakh and Arunachal Pradesh—including Lukung, Chusul, Dhan Singh and Bao Nallah in Ladakh and Tapola, Kangri, Balchida, Phuphu, Lama and Amaha in Dibang Valley district in Arunachal—took years to get environmental and forest clearances amidst repeated incursions by the Chinese military in these areas. According to Col. Ashok Pandey, an engineering officer who has served with the BRO, various provisions of the Forest Conservation Act (FCA), 1980, pose a challenge to speedy completion of projects.

The high-profile project where environmental concerns led to the purported legal stonewalling of defence infrastructure was in the 825 km Char Dham expressway project in Uttarakhand. Inaugurated by Prime Minister Narendra Modi in 2016, this was ostensibly a tourism project to improve connectivity between the religious sites of Badrinath, Kedarnath, Yamunotri and Gangotri. But its strategic significance was not lost on anyone—the roads and feeder roads are crucial for the military to have access to the LAC. In 2017, the project came under the scanner of the National Green Tribunal, which heard pleas that the road widening works violated the Bhagirathi Eco Sensitive Zone laws.

The petitioners said the region was unstable and prone to landslides and extreme rainfall events, and widespread felling of trees and cutting of hillsides for the project would spell doom for the region. As the matter moved to the Supreme Court, a high-powered committee (HPC) was formed in 2019, which gave elaborate instructions on following environmental safeguards. With the ministry of defence and the Union ministry of road transport and highways (MoRTH) also a party to the issue, the SC also created an oversight committee for strategic roads to monitor strict compliance with the law.

The MoD vigorously pursued its case for the widening of 674 km of 'strategic roads' that led to the LAC, stating it was needed for the movement of heavy vehicles carrying troops, self-propelled artillery and other machinery. Appearing for the government, Attorney General K.K. Venugopal said: "Our BrahMos missile is 42 feet long and the army needs large vehicles to carry its launchers. If it cannot move its missile launchers to the northern border, how will it fight a war?"

The SC in September 2020 had allowed the carriageway width to be